

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 14
JUDICIAL OFFICER: KIRK ATHANASIOU
HEARING DATE: 08/18/2026

For matters where an appearance is required, the parties should appear by Zoom unless told to appear by another method. For all other matters, if argument is requested appearances may be in person or by Zoom.

Please email Dept14@contracosta.courts.ca.gov and opposing counsel by 4:00 p.m. if oral argument is requested, the requesting party shall specify the issues to be argued.

Zoom hearing information

<https://contracosta-courts-ca.zoomgov.com/j/16103009385?pwd=TjFZRDBnNkVQRlV0Znhvai9qT05tZz09#success>

Law & Motion

1. 9:00 AM CASE NUMBER: L22-02131

CASE NAME: DISCOVER BANK VS. CHRISTOPHER PEANG

*HEARING ON MOTION IN RE: NOTICE OF MOTION AND MOTION FOR ENTERING JUDGMENT
PURSUANT TO DEFENDANT'S DEFAULT UNDER SETTLEMENT AND RELEASE AGREEMENT
FILED BY:

TENTATIVE RULING:

Plaintiff filed a Motion to set aside a dismissal and enter judgment, on 2/18/26, which was originally scheduled to be heard on 6/2/26.

However, on 6/2/26, this court found that the copy of the agreement at issue, provided by Plaintiff as an exhibit attached to their Motion and also in court during the hearing, was not sufficiently legible. The court continued the matter to 8/18/26, 9am, and ordered Plaintiff to file a legible copy of the agreement.

That has not been done.

This court does not find sufficient evidence to rule on Plaintiff's behalf, given the evidence provided.

This court already gave the Plaintiff an opportunity to fix the problem; they chose not to avail themselves of that chance.

Disposition

Plaintiff's Motion is denied without prejudice.
Court to file Order.

2. 9:00 AM CASE NUMBER: L23-03444
CASE NAME: NAVY FEDERAL CREDIT UNION VS. TIMOTHY INGALLS
HEARING ON SUMMARY MOTION
FILED BY: NAVY FEDERAL CREDIT UNION

TENTATIVE RULING:

Plaintiff filed a Motion for Summary Judgment (the “MSJ”), along with a Declaration and a Separate Statement of Undisputed Material Facts. The Motion is unopposed, and Plaintiff provided notice by mail at the address indicated in the order relieving counsel of the Defendant, filed on 2/20/24.

Background

The Complaint alleges a breach of contract as the sole cause of action, stemming from a personal loan.

On 12/2/25, the court granted Plaintiff’s motion to deem matters admitted (“Admitted Matters Order”), which admitted all the matters reflected in the 8/19/24 Declaration of Fahad Assad. The admitted matters reflect that, among other things, Defendant applied for a loan, borrowed against the loan by virtue of making third party purchases, and stopped making payments on this loan per the agreement. The agreement allowed for the recovery of attorney’s fees and costs by the Plaintiff.

The court takes judicial notice of the Admitted Matters Order, as well as the declaration and motion on which the Order was based.

Plaintiff also, in its moving papers, provided an itemized list of attorney’s fees and costs.

Analysis

The procedure by which a party may seek pretrial entry of judgment on the ground that there is no dispute of material fact is summary judgment or, when the request is for a dispositive ruling on one of multiple claims within an action, summary adjudication. Code Civ. Proc. § 437c; Rule 3.1350 of the California Rules of Court (CRC); see *Weiss v. People ex rel. Dept. of Transportation* (2020) 9 Cal.5th 840, 864; see generally CJER, *California Judges Benchbook: Civil Proceedings before Trial* (2022) (“CJER Civ. Proc. before Trial”), § 13.2 *et seq.* A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty. Code Civ. Proc. § 437c(f)(1).

Courts deciding motions for summary judgment or summary adjudication may not weigh the evidence but must instead view it in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party. *Weiss v. People ex rel. Dept. of Transportation*, *supra*, 9 Cal.5th at 864. To ensure that the opposing party has notice of

the factual issues in dispute and an opportunity to present the evidence relevant to the motion, the parties must submit separate statements of undisputed facts. *Id.* at 864; see Code Civ. Proc. § 437c(c) and CRC 3.1350(d).

The party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that the party is entitled to judgment as a matter of law. *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850; see CJER Civ. Proc. before Trial, § 13.60. There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof. *Id.* A plaintiff bears the burden of persuasion that each element of the cause of action in question has been proved, and hence that there is no defense thereto. *Id.* A defendant bears the burden of persuasion that one or more elements of the cause of action in question cannot be established, or that there is a complete defense thereto. *Id.*

The party moving for summary judgment bears an initial burden of production to make a *prima facie* showing of the nonexistence of any triable issue of material fact; if the moving party carries its burden of production, the burden shifts to the opposing party who then has a burden of production to make a *prima facie* showing of the existence of a triable issue of material fact. *Aguilar v. Atlantic Richfield Co.*, *supra*, 25 Cal.4th at 850.

Cause of Action: Breach of Contract

To establish a claim for breach of contract, a plaintiff must establish: (1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damage to Plaintiff. *Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821.

In the instant matter, the court finds that the Plaintiff has met its burden.

Also, the court finds that Plaintiff's claims for attorney's fees and costs are reasonable.

Disposition

The Court finds and orders as follows:

- 1. The MSJ is Granted, in the principal amount of \$6,093.50; \$1,050 for attorney's fees; and \$824.90 for costs.**
2. Defense to prepare the order after hearing and serve a copy of the filed order on Defendant.